

TENTATIVE RULING(S) FOR May 27, 2026

Department S37 – Judge Winston Keh

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CIVSB2437794

Khajavi v. GM

TENTATIVE RULING(S):

Plaintiffs Khajavi and Phoenix propounded Form & Special Interrogatories, and Requests for Production of Documents (RFPs). On April 17, 2024, Defendant GM served its responses with the verification following on April 24, 2024. (Whitman Rog Decl. at ¶¶5-7, Exhs. 1-3; Whitman Doc Decl. at ¶¶5, 7-8, Exhs. 1, 3-4; Quezada Decl. at ¶¶2-3.) Finding the responses to Form Interrogatories #12.1, 15.1, & 17.1; Special Interrogatories #2-36, 40-47, & 51-110; and RFPs #1-9, 13-17, 19, 21, 27, 33-38, 41-59, & 61-100 deficient, Plaintiffs Khajavi and Phoenix move to compel further responses. Defendant GM opposes. Plaintiffs Khajavi and Phoenix reply.

Analysis

Procedurally, the parties met and confer, contrary to GM's contentions. (Whitman Rog Decl. at ¶¶8-9, Exhs. 4-5; Whitman Doc Decl. at ¶¶9-10, Exhs. 4-5; Quezada Decl. at ¶¶4-5.) The motions were further timely filed from the date of service of the verifications.

1. Form Interrogatories

At issue is Form Interrogatories #12.1, 15.1, and 17.1

12.1. Form Interrogatory #12.1 asks, at its core, for witnesses of the "incident." Although Defendant objected, it also provided a response by identifying those with knowledge/ witnesses, and the documents where specific names could be ascertained per Code of Civil Procedure section 2030.230. Plaintiffs fail to demonstrate that a response would not require GM to merely comb through records to compile a list, which they could equally do through the same records. Therefore, the Court DENIES compelling a further response to Form Interrogatory #12.1.

15.1. Form Interrogatory #15.1 asks that the responding party state all facts, identify all witnesses, and identify all documents that support each denial of material allegations and each affirmative defense. GM generally states as discovery is ongoing, and it has not deposed Plaintiff or inspected the vehicle, so it cannot possibly state all facts to support denials and defenses. When filing a pleading, an attorney swears it is factually supported. (Code Civ. Proc., §128.7, subd. (b).) Thus, Defendant needs to state the information known at the time of responding that exists to support each denial and defense pled versus merely noting that seeking facts to support. Therefore, the Court COMPELS a further response to Form Interrogatory #15.1.

17.1. Form Interrogatory #17.1 asks for each RFA that was not an unqualified admission to state all facts, witnesses, and documents to support the qualified admission or denial. After incorporating objections stated in RFAs, GM lumps RFAs #1-56 together, and in relation to stating all facts and witnesses supporting the denial, it states investigation is ongoing. For the documents in support of the denials, GM provides a list of documents. A party needs to respond completely to an interrogatory, or to the extent that it can. (Code Civ. Proc., §2030.220.) Defendant cannot provide a response merely because not all facts and witnesses

can be presently known. Therefore, the Court COMPELS a further response to Form Interrogatory #17.1(b)-(c).

2. Special Interrogatories

At issue are Special Interrogatories #2-36, 40-47, and 51-110.

#2-5, 8-20, 22-33, 36, 42-45, 51, & 53-69. These interrogatories asked GM to provide facts of information related to contentions associated with the repair of the Subject Vehicle. After initially objecting, GM either provided a response and referred to documents, or referred to document per Code of Civil Procedure section 2030.230 that would contain the complied information Plaintiff sought.

Although Plaintiff may not like the response given, a response was nevertheless given, and the Court cannot compel GM to provide any one particular answer. (*Holquin v. Superior Court (Hoage)* (1972) 22 Cal.App.3d 812, 820-21.) Additionally, many of the interrogatories were seeking compilation of information whereby Defendant GM could properly invoke section 2030.230 and cite to documents that contain the information sought.

The exception to the above is Interrogatory #3. At its core, that interrogatory asked for a number. A simple answer of responding 1, 2, 5, 6, etc. is necessary. The response given fails to provide a straightforward answer to a straightforward request.

Therefore, the Court DENIES compelling further responses to Special Interrogatories #2, 4-5, 8-20, 22-33, 36, 42-45, but GRANTS compelling a further response to Special Interrogatory #3.

#6-7. Interrogatories #6-7 asked for all facts and documents that support GM's contention that the experiences Plaintiffs encounter with the Subject Vehicle were because of their unauthorized or unreasonable use. After objecting, Defendant punts in providing a response because not all its investigation into the vehicle has been done. Although this may be true, it still needs to provide the facts and documents known when responding. Therefore, the Court COMPELS further responses to Special Interrogatories #6-7.

#21. Interrogatory #21 asked for a description of all duties of the persons employed by GM that had any communication regarding the Subject Vehicle. GM objected because vague,

irrelevant, seeks proprietary information, and seeks attorney client privileged communication or work product [hereinafter Asserted Objections]. Although not clear how the duties of employees would constitute a trade secret or attorney work product or communications, the interrogatory is overbroad in seeking duties of any person mentioned in a communication. The duties of particular persons *may* be relevant, but on a request for the duties of everyone it cannot be said to be the case. Therefore, the Court DENIES compelling a further responses to Special Interrogatory #21.

#34. Interrogatory #34 asked for the names of all persons with responsibility over the customer relations department in the district or region with jurisdiction over Plaintiffs' complaints. Defendant objected with the Asserted Objections. Like above, it is not clear how names are trade secrets or encompass attorney communications or work product. Yet the demand is overbroad and seeks irrelevant information when asks for all persons involved in the customer relations department. Those who assisted Plaintiff or those who made decision related to claims made by Plaintiff may be witnesses whose names need to be disclosed, but it cannot be said everyone within the customer relations department must be identified. Therefore, the Court DENIES compelling a further response to Special Interrogatory #34.

#35. Special interrogatory #35 asked for GM's PMK on its warranty policies. Defendant GM objected that it was premature to disclose witness information, and it had not yet inspected the vehicle. The point of discovery is to ascertain witness information, and Plaintiffs are entitled to information on who are GM's PMKs. Therefore, the Court COMPELS a further response to Special Interrogatory #35.

#40. Interrogatory #40 asked for the identity of the individual responsible for ensuring prompt repurchases and replacements. Defendant objected with the Asserted Objections. The request seeks a name. In particular, a name of person who may have knowledge on policies and procedures that could bear on whether a willful failure exists in repurchasing or replacing Plaintiffs' vehicle. Therefore, the Court COMPELS a further response to Special Interrogatory #40.

#41. Interrogatory #41 asks GM to describe how an individual whose duty is to ensure compliance with repurchase and replacement obligation performs that duty. Defendant objected with the Asserted Objections. Considering Plaintiffs would be seeking civil penalties for willful failure to comply with the Song Beverly Consumer Warranty Act, information on how one ensures compliance could be relevant. Therefore, the Court COMPELS a further response to Special Interrogatory #41.

#46-47. Special interrogatories #46 and 47 asks whether the person who made the decision to not repurchase the Subject Vehicle was employed by GM, and if not, then who was that person's employer. Defendant response, after objecting, was that the Subject Vehicle had been repaired, and all issues were resolved. Although a more succinct answer could have been given, GM is contending essentially since the Subject Vehicle was not a lemon, no basis to repurchase or replace, and ultimately the decision did not need to be made. Plaintiff may not like the answer given, but an answer was given. Therefore, the Court DENIES compelling further responses to Special Interrogatories #46-47.

#52. Interrogatory #52 asked for details on the process by which a TSB is recalled or superseded. Defendant objected based on Asserted Objections. This litigation concerns whether the Subject Vehicle had a defect and that defect was not repaired within a reasonable number of attempts. Nothing in that requires knowing the thought process in recalling TSBs or issuing TSBs that supersede other TSBs. Therefore, the Court DENIES compelling a further response to Special Interrogatory #52.

#70-110. Interrogatories #70-75 & 91-96 asks for a description of all assessments, analyses, tests, test results, studies, surveys, etc. that relate or may relate to the Electrical Defect or Restraint and Safety Defect that were conducted or planned. Interrogatory #76-83 & 97-104 asked for description of all modifications or changes made in the design, material composition, etc. that relates to the Electrical Defect or Restraint and Safety Defects in the Subject Vehicle. Interrogatories #84-88 & 105-109 ask for the assessments of the Electrical Defect or Restraint and Safety Defect in the Subject Vehicle. Interrogatories #89 & 110 ask for the identity of the databases GM maintains that relates to the efforts to investigate, diagnose,

assess, modify, repair, evaluate the Electrical Defect or Restraint and Safety Defects in vehicles of the same make, model, and year as the Subject Vehicle. Interrogatory #90 asked for the identity of all repair document issued to the same year, make, and model vehicle as the Subject Vehicle.

GM responded with the Asserted Objections.

Although other complaints by other consumers have a relevancy in assisting proving a defect and establishing the civil penalties per *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973-74 and *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 152-53, it does not mean all assessments, tests, composition, databases, or repairs conducted in general or on other similar vehicles are discoverable. Therefore, the Court DENIES compelling further responses to Special Interrogatories #70-110.

3. RFPs

At issue are document demands #1-9, 13-17, 19, 21, 27, 33-38, 41-59, and 61-100.

#1-8, 13-17, 19, 27, 38, 41-42, 47-50, 52, & 65-66. Document demands #1-8, 19, 27, & 38 sought records related to the Subject Vehicle, i.e., repair orders, part invoices, warranty repair documents, warranties, service file, etc. Demands #13-16 & 47-50 sought communications made about the Subject Vehicle, or between Plaintiffs and Defendant, or between GM and any dealership about the Subject Vehicle. Plaintiff demanded within RFP #17 for all documents, including manuals, publications, and directives, regarding or relating to handling warranty repairs on the Subject Vehicle. Demands #41-42 sought documents on procedures and policies. Demand #52 asked for all documents GM relied upon in making its decision to neither repurchase nor replace the Subject Vehicle. RFPs #65-66 asked for all documents related to Plaintiffs' repurchase request or support GM's contention that under no obligation to replace or repurchase the Subject Vehicle.

After objecting, GM responded with identifying and producing documents it identified as responsive. Although Plaintiff may not like the response or production given, the Court cannot order GM to produce documents that Plaintiff believes should be produced. (See, e.g., *Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1266; SCC

Acquisitions, Inc. v. Superior Court (Western Albuquerque Land Holdings, LLC) (2015) 243 Cal.App.4th 741, 752-53.) Therefore, the Court DENIES compelling further responses to RFPs #1-8, 13-17, 19, 27, 38, 41-42, 47-50, 52, 65.

#9 & 84. Demands #9 & 84 asked for all recall documents, warranty extensions, and TSBs. Defendant GM produced all bulletins that were issued for the Subject Vehicle, and list of all TSBs and ISBs that were issued. GM will produce copies of any TSBs and ISBs Plaintiff identifies. The response is adequate. Therefore, the Court DENIES compelling further response to RFPs #9 & 84.

#21 & 67. Demand #21 asked for all documents identified in the Special Interrogatories. Demand 67 asked for all documents supporting GM's affirmative defenses. Defendant stated it would produce those records and identified responsive documents. What is there to compel? Defendant responded. Therefore, the Court DENIES compelling further responses to RFPs #21 & 67.

#33-35. Plaintiff sought within RFPs #33-35 for documents regarding GM's efforts to reduce the number of repurchased vehicles in California, repeat repair attempts, and reacquired vehicles. GM objected on grounds of overbroad, irrelevant, compliance would be difficult, seeks proprietary information, and seeks attorney-client communications or work product. Although under Song Beverly Consumer Warranty Act, Plaintiff can obtain civil penalties for willful failure to comply with duty to repurchase or replace, it goes to the willfulness associated with the Subject Vehicle, and not to general policies that may or may not exist on handling repurchases, reacquisitions, and repeated repair attempts. Furthermore, the demands are overbroad when states all documents without specifying what type of document. Arguably, any memo, scrap of paper, etc. would be subject to the demand. Therefore, the Court DENIES compelling further responses to RFPs #33-35.

#36, 46, & 51. RFP #36 asks for all documents related to repeat repair procedures for remedying customer concerns. Demands #46 & 51 asked for all documents related to the technical hotline or customer call center. Defendant objected because vague, overbroad, irrelevant, seeks confidential information, and seeks attorney-client communications or work

product. Similar to above, Plaintiffs asks for all documents but does not define the type of document. Do they want every memo, scrap of paper, a policy, an index? It would be hard pressed to determine if GM complied, when it cannot be clearly determined what document would be responsive. Therefore, the Court DENIES compelling a further response to RFP #36, 46, & 51.

#37. RFP #37 asked for all documents related to the pinpoint tests available for the Subject Vehicle. Defendant asserted the same objections as above. The issues in this litigation revolve around whether the Subject Vehicle has a defect that cannot be cured, and thereby an obligation exists to repurchase or replace. The tests available for the Subject Vehicle is not shown relevant to the necessary inquiry in a Song Beverley Consumer Warranty litigation. Therefore, DENIES compelling a further response to RFP #37.

#43 & 59. Demand #43 asked for all documents given to third-parties to investigate or evaluate whether a vehicle qualified for repurchase or replacement, including training manuals, videos, and flow charts. Similarly, RFP #59 asked for the training material given to its employees, agents, or representatives for handling consumer lemon law repurchase requests. GM objected in the same manner objected above. Considering Plaintiff seeks the civil penalty, and the means of training on buybacks and replacements could bear on willfulness, the Court GRANTS compelling further responses to RFP #43 & 59, but subject to production after the entering of a protective order.

#44-45. RFPs #44-45 asked for the operating agreement that GM has with any third party who evaluates whether a vehicle qualifies for repurchase or replacement and answers customer calls. Defendant GM objected. The contractual agreement between GM and a third party is irrelevant. The means and manners of the work performed, or the training given on the means and manner for the work may be relevant but not the contractual agreement. Therefore, the Court DENIES compelling further responses to RFPs #44-45.

#53-55. These demands seek policies and manuals, i.e., Warranty Policy and Procedure Manuals (#53), Workshop Manual (#54), and recall policy and procedures (#55). Defendant objected but as for the Workshop Manual is identified where Plaintiffs can get a copy. Now,

policies and procedures could bear on the issues of the vehicle being defective or willfulness in failing to repurchase or replace. Therefore, subject to the entering into a protective order, the Court COMPELS further responses to RFP #53 & 55, but DENIES further responses to RFPs #54.

#56-58. Demands #56-57 asked for GM to produce all submitted Transportation Recall Enhancement, Accountability, and Documentation (TREAD) reports and Early Warning Reports (EWR) that concern the same year, make, and model as the Subject Vehicle. RFP #58 asked for all communications between GM and any government agency (e.g., NHTSA) regarding defects in the same make, year, and model as the Subject Vehicle. Defendant objected. Concerning the EWR, Defendant identified where Plaintiff could obtain copies. Under *Dolen* and *Doppes*, other consumer complaints could be relevant, but that does not equate to every document that could exist that address other similar vehicles. Furthermore, the data on other vehicles is generally limited to reports or communications discussing the same or similar defects. The demands here are not so limited. Therefore, the Court DENIES compelling further responses to RFPs #56-58.

#61-64. RFPs #61-62 seeks documents, plans, policies, procedures, programs, etc. on GM's goals to reduce buybacks, repurchases, or replacements. Demand #63 seeks essentially policies, procedures, or instructions to GM agents on what to do after decision made to refund or replace. Demand #64 asks for documents that state rules, policies, procedures concerning the issuance of refunds to buyers or providing replacement vehicles. Defendant objected (irrelevant, vague, burdensome, seeks propriety information, and seeks attorney communications or work product). Although policies and procedures could bear on issues of willfulness for the civil penalty, the policies sought in these demands, except #64, are not related to relevant matters. Therefore, the Court DENIES compelling further responses to RFPs #61-63, but COMPELS a further response to RFP #64 but subject to the entering a protective order.

#68. Demand #68 asks for all documents that reflect if any warranty extension for vehicles of the same make, model, and year as the Subject Vehicle. Defendant asserted its normal objections. Whether any warranty covering the Subject Vehicle is being extended has no

bearing on the claim that GM breached obligations under the warranty covering the Subject Vehicle and the lemon law statute. Therefore, the Court DENIES compelling a further response to RFP #68.

#69 & 73. RFPs #69 & 73 asked for the wiring diagrams for any system related to the Subject Vehicle's Electrical Defect or Restraints and Safety Defect. Defendants stated its normal objections. Although at issue is whether the Subject Vehicle had defects in its electrical or restraint and safety systems, it is not demonstrated to then need diagrams of the Subject Vehicle's system. Therefore, the Court DENIES compelling further responses to RFPs #69 & 73.

#70-72, 74-83 & 85-9100. Demands #70-72, 74-83, & 85-94 related to obtain complaints, documents, deposition transcripts, communications, and fixes that relate to failures in similar vehicles and/or the Electrical Defect or Restraints and Safety Defect. Demands #95-100 sought documents related to fixes to specified Service Action or TSB matters associated with 2024 Hummers. Defendant objected in its usual manner. As discussed above, under *Dopes* and *Donlen*, other complaints by consumers of the same year, make, and model vehicle as the Subject Vehicle could provide evidence to support a defect exists. Similarly, communications or investigations about these 2 defects could shed light on whether the defect experienced by the Subject Vehicle is likely and/or fixable to then support a willful failure to repurchase or replace. However, asking for all documents relating to the alleged defects is overbroad because it would require producing every communication, memo, scrap of paper, etc. where someone wrote or referenced electrical or restraints and safety defects. Also, seeking documents in general about failures of 2024 Hummers is overbroad, as this litigation concerns defects in the electrical and restraints and safety systems. Based on this, the Court GRANTS compelling further responses to RFPs #70, 74, 81-82, 87-89, 91, & 94-100, subject to protective order and right to redact other consumer names, but DENIES compelling further responses to RFPs #71-72, 75-80, 83, 85-86, 90, & 92-93.

RULING

For all the reasons stated above, the Court rules as follows:

- (1) Form Interrogatories

(a) DENIES Plaintiffs Khajavi and Phoenix's Motion to Compel Further re Form Interrogatory #12.1;

(b) GRANTS Plaintiffs Khajavi and Phoenix's Motion to Compel Further re Form Interrogatories #15.1 and 17.1(b)-(c); and

(c) ORDERS Defendant GM to serve verified, further responses to Form Interrogatories #15.1 and 17.1(b)-(c) within 30 days of this ruling.

(2) Special Interrogatories

(a) DENIES Plaintiffs Khajavi and Phoenix's Motion to Compel Further re Special Interrogatories #2, 4-5, 8-34, 36, 42-47, & 51-110;

(b) GRANTS Plaintiffs Khajavi and Phoenix's Motion to Compel Further re Special Interrogatories #3, 6-7, 35, & 40-41;

(c) ORDERS Defendant GM to serve verified, further responses to Special Interrogatories #3, 6-7, 35, & 40-41 within 30 days of this ruling.

(3) Requests for Production of Documents

(a) DENIES Plaintiffs Khajavi and Phoenix's Motion to Compel Further re RFPs #1-9, 13-17, 19, 21, 27, 33-38, 41-42, 44-52, 54, 56-58, 61-63, 65-69, 71-73, 75-80, 83-86, 90, & 92-93;

(b) GRANTS Plaintiffs Khajavi and Phoenix's Motion to Compel Further re RFPs #43, 53, 55, 59, 64, 70, 74, 81-82, 87-89, 91, & 94-100, subject to the parties entering into a protective order and the redaction of any third-party consumer;

(c) ORDERS Defendant GM to serve verified, further responses to RFPs #43, 53, 55, 59, 64, 70, 74, 81-82, 87-89, 91, & 94-100 within 30 days after the Courts signs the parties protective order.